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| CASE #      | CASE NAME                                                                        | HEARING NAME                   |
|-------------|----------------------------------------------------------------------------------|--------------------------------|
| CVRI2506391 | GEORGE, AN<br>INDIVIDUAL VS KIA<br>AMERICA, INC., A<br>CALIFORNIA<br>CORPORATION | MOTION FOR SUMMARY<br>JUDGMENT |

**Tentative Ruling:** Defendant Kia America's Motion for Summary Judgment/Adjudication is denied.

#### EVIDENTIARY OBJECTIONS

Plaintiffs object to ¶ 14 of the Decl. of Kyran Johal, wherein he states that Plaintiffs did not surrender the Vehicle as agreed, on the grounds it violates the best evidence and secondary evidence rules and is an improper legal conclusion. These objections are overruled.

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. *See also Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must "set forth the specific facts showing that a triable issue of material fact exists." (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a "disfavored" procedure, the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

Defendant argues that Plaintiffs' claims fail because Defendant made a prelitigation offer to repurchase the Vehicle in compliance with C.C.P. § 871.24, and though Plaintiffs accepted that offer, they did not ultimately allow Defendant to repurchase the Vehicle. In response, Plaintiffs argue that Defendant did not complete the repurchase of

the Vehicle within 60 days, so their lawsuit seeking, among other things, civil penalties, is proper.

C.C.P. § 871.24(a) provides that: “At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall . . . (1) Notify the manufacturer of the consumer’s name, the accurate Vehicle Identification Number (‘VIN’) of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle [and] (2) Demand that the manufacturer repurchase or replace the motor vehicle.” (C.C.P. § 871.24(a)(1)-(2).) Pursuant to C.C.P. § 871.24(e), a request for civil penalties under Civ. Code § 1794(c) shall not be allowed or maintained if (a) the manufacturer makes an offer of restitution or replacement of the vehicle, plus reasonable attorney’s fees and costs, within 30 days after receipt of the notice, and (b) the vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice. (C.C.P. § 871.24(e)(1).)

According to C.C.P. § 871.24(h), “[a]n action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. *If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.*” (C.C.P. § 871.20(h) [emphasis added].)

The undisputed facts are as follows:

- On August 27, 2025, Plaintiffs sent a demand to Defendant to repurchase the Vehicle [UMF # 12];
- On August 28, 2025, Defendant acknowledged the demand and requested specific documents from Plaintiffs for review [UMF # 13];
- On September 2, 2025, Plaintiffs sent the requested documents to Defendant [UMF # 14];
- On September 11, 2025, Defendant agreed to repurchase the Vehicle [UMF # 15];
- On October 8, 2025, Plaintiffs returned to Defendant a signed version of the repurchase agreement [UMF # 16];
- On November 11, 2025, Defendant notified Plaintiffs that the Vehicle’s file was being sent to prepare for surrender of the Vehicle [UMF # 17]; and
- On November 12, 2025, Plaintiffs filed this action against Defendant [UMF # 18.]

Thus, there is no dispute that Plaintiffs complied with C.C.P. § 871.24(a) by sending a prelitigation demand for repurchase to Defendant, or that Defendant complied with C.C.P. § 871.24(e)(1) by making an offer to repurchase the Vehicle within 30 days of Plaintiffs' demand. (UMF ## 12-15.) There is also no dispute that Defendant did not comply with C.C.P. § 871.24(e)(2) by completing the repurchase within 60 days of the notice/demand. (UMF ## 12, 17-18.) Defendant argues, without citing any statutory or case law, that Plaintiffs are prohibited from bringing this suit despite Defendant's failure to complete the repurchase within 60 days because Plaintiffs waited 27 days before accepting Defendant's repurchase offer, cutting Defendant's compliance time in half. (Reply, p. 3:4-16.) However, § 871.24(e) prohibits a consumer from making request for civil penalties under Civ. Code § 1794(c) only if the manufacturer meets both requirements – it makes an offer to repurchase or replace the vehicle and completes the repurchase/replacement within 60 days of the notice. (C.C.P. § 871.24(e)(1)-(2).)

Furthermore, § 871.24(h) states that if the consumer makes the required demand “and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.” (C.C.P. § 871.20(h).) There is nothing in the statute that provides for a longer time to complete repurchase/replacement based on when the offer is accepted.

Statutory interpretation requires a three-step analysis. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 825-826.) First, the court examines the actual language of the statute and gives the words their ordinary meaning; if the language is unambiguous, the language controls. (*Ibid.*) Second, if the meaning of the words is not clear, the courts must look to the legislative history. (*Ibid.*) Third, if the clear meaning is still not revealed, the court is to apply reason, practicality and common sense to interpret the words to make them workable and reasonable. (*Ibid.*) Here, the language of C.C.P. § 871.24 is unambiguous: a claim for civil penalties under the Song Beverly Act is only prohibited if the manufacturer both offers to repurchase/replace the vehicle *and* completes the repurchase/replacement within 60 days. It is undisputed that did not happen in this case. Therefore, Defendant fails to meet its burden of establishing that Plaintiffs' claims are precluded under C.C.P. § 871.24.

## 2.

| CASE #      | CASE NAME                                                                          | HEARING NAME |
|-------------|------------------------------------------------------------------------------------|--------------|
| CVRI2601705 | LARKIN VS STATE OF CALIFORNIA, ACTING BY AND THROUGH THE CALIFORNIA HIGHWAY PATROL | DEMURRER     |

**Tentative Ruling:** Defendants' Demurrer as to the 1<sup>st</sup> Cause of Action is overruled; as to the 2<sup>nd</sup> Cause of Action it is sustained with 20 days leave to amend.